

**BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS**

STATE OF COLORADO

Case Nos. 8502000002 and 8502000021

STIPULATION AND FINAL AGENCY ORDER

**IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
JOHN TRENTALANGE, LPC, LICENSE NO. 2626,**

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners (the "Board") and John Trentalange, LPC, ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a professional counselor in the State of Colorado on or about August 31, 2000, and has been so licensed at all times relevant herein.
3. This Order is a full and final resolution of case numbers 8502000002 and 8502000021. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. Respondent provided psychotherapy treatment to patient SG from approximately July 2000 through April 2001.
 - b. During the course of treatment, SG exhibited signs and symptoms of Borderline Personality Disorder ("BPD") and had a history of sexual and physical trauma.
 - c. Respondent did not refer SG to another provider or obtain a consultation with another practitioner upon becoming aware that the treatment required by SG was beyond Respondent's training, experience or competence.
 - d. Respondent did not maintain professional boundaries while treating SG by:

1. writing a personal letter to SG on or about November 17, 2000;
2. buying SG gifts and food;
3. writing a contract with SG on or about April 7, 2001, indicating they could start dating six months after SG terminated therapy with Respondent.

e. Respondent did not terminate his professional relationship with SG as required by standards of practice.

f. Respondent did not terminate his relationship with SG when he realized SG had developed feelings for him that were beyond the therapist/client relationship.

g. Respondent treated SG with Holding Therapy, which is contraindicated for patients with BPD and/or sexual abuse issues.

h. Respondent did not adequately document any work he did with SG on boundary issues and/or referral to another provider due to boundary issues.

i. Beginning in about January of 2001, Respondent began treatment for siblings TlO and TnO. TlO was a child approximately seven years of age exhibiting signs and symptoms of anxiety. TnO was a child approximately four years of age exhibiting signs and symptoms of behavioral problems.

j. Respondent did not adequately document assessment, diagnosis, techniques, and treatment goals for TlO and TnO.

5. By virtue of the facts admitted in paragraph 4 above, the Board finds that Respondent violated §§ 12-43-222(1)(g), (h), (i), (l), and (u), C.R.S.

6. By virtue of the admissions in paragraph 4, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety, and welfare.

PERMANENT PRACTICE RESTRICTION

7. Respondent has voluntarily limited his practice of professional counseling and no longer performs Holding Therapy on children or adults. Holding Therapy refers to a specific type of treatment, not the typical holding of children by their parents.

8. Notwithstanding any other provision of this Order, commencing on the effective date of this Order, Respondent agrees that he shall not engage in, conduct or recommend any therapy technique or method involving Holding Therapy for children and/or adults. This restriction shall be permanent and shall not expire or terminate without order of

the Board. For purposes of this Order, Holding Therapy shall include any type of physical restraint or hold placed upon the patient or client by Respondent or another person.

PROBATION

9. Respondent's license to practice professional counseling in the State of Colorado is hereby placed on probation for three (3) years commencing from the date this Order is fully executed or the date Respondent's clinical supervisor is approved, whichever date is later. During the probationary period, Respondent shall be bound by the terms and restrictions set forth below.

10. The period of probation is tolled during any time that Respondent is not practicing in this state, and such period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

11. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a professional counselor in Colorado, is being monitored by a clinical supervisor, and is in full compliance with all terms of this Order.

12. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that he has satisfied all terms and conditions of probation.

CLINICAL SUPERVISOR

13. During the term of probation, Respondent's practice shall be monitored by a clinical supervisor. Within 30 days of the effective date of this Order, Respondent shall submit, in writing, three proposed clinical supervisors for the Board's approval. Respondent shall include for consideration the current curriculum vita of each proposed monitor and a commitment letter from the proposed clinical supervisor stating that he/she has read this Order and understands and agrees to perform the obligations set forth herein. The clinical supervisor shall meet the following criteria:

a. The clinical supervisor shall be a licensed, certified, or listed currently practicing mental health provider in the State of Colorado.

b. It is recommended that the clinical supervisor have a minimum of five years experience and not have been subject to professional discipline.

c. The clinical supervisor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

14. Respondent must have a clinical supervisor approved by the Board within two months after this Order is fully executed. If this requirement is not satisfied, Respondent

must cease practice and agrees to suspension of his practice until a clinical supervisor is approved.

15. After the Board's written approval of the clinical supervisor, Respondent and the clinical supervisor shall enter into a written contract for monitoring. The clinical supervisor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the clinical supervisor has received a copy of this Order, the complaint and responsive documents, any investigative report, and any prior practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Respondent's clinical supervisor. The clinical supervisor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the clinical supervisor. This written notification may be provided in a mandatory disclosure statement.

16. The clinical supervisor shall conduct a practice evaluation during the first month of clinical supervision. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice and his qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether he has the necessary qualifications, current ability, and competence to practice. The first clinical supervision report shall include the findings of the practice evaluation.

17. Should the Board determine from the clinical supervisor's evaluation that Respondent cannot practice any part of his practice with skill and safety for clients in accordance with generally accepted standards of practice or does not have the appropriate qualifications, ability or competence for practice, Respondent shall immediately cease any part of the practice that the Board determines, based on the evaluation, he is not qualified, competent, or safe to conduct. Based on the Board's findings and the evaluation, the Board will determine necessary actions that Respondent must take and conditions Respondent must meet so that Respondent can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Board finds Respondent is not qualified, competent, and safe to practice. Once Respondent satisfies the Board that he is qualified, competent, and safe to fully practice, Respondent may resume full practice.

18. The clinical supervision shall consist of individual, in-person (face-to-face) sessions that occur once a week for at least one hour, or such longer time as the clinical supervisor deems necessary. During the clinical supervision sessions, Respondent and his clinical supervisor must review and discuss each of Respondent's active cases at least once every month in order to allow the clinical supervisor to be able to determine whether Respondent is practicing professional counseling in accordance with generally accepted standards of practice and with skill and safety for his clients.

19. The clinical supervisor shall submit written reports to the Board on the fifth day of the month following the first full month of clinical supervision. All subsequent reports shall be submitted on the fifth day of each month for the first 12 reports. After the submission of the first 12 reports, unless otherwise ordered by the Board, the clinical

supervisor shall submit his/her reports by the fifth day of every third month (i.e., on a quarterly basis) until the clinical supervision is completed.

20. If at any time the Board has questions or concerns regarding the monitoring, the clinical supervisor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the clinical supervisor 30 days notice prior to requiring the clinical supervisor's attendance at the Board meeting.

21. If at any time the clinical supervisor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to his clients, or has committed a violation of the practice act or rules and regulations, the clinical supervisor shall immediately notify the Board, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling.

22. Respondent shall make every effort to ensure that all reports by the clinical supervisor are complete and timely submitted to the Board. If, in the Board's judgment, the clinical supervisor fails to perform the function specified by this Order, the Board may require that a new clinical supervisor assume the responsibilities herein. If for any reason the clinical supervisor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed clinical supervisor to the Board within 30 days.

23. Respondent or the clinical supervisor may terminate the monitoring relationship upon written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved clinical supervisor, who shall conduct her/his monitoring and report to the Board in accordance with this Order.

THERAPEUTIC CONDITIONS

24. Respondent agrees to participate in psychotherapy for a minimum of two years following the effective date of this Order with a Board approved treatment provider. Psychotherapy shall occur no less than twice a month unless otherwise recommended by the approved treatment provider. Respondent may propose duly licensed individual(s) already providing treatment to Respondent to fulfill this requirement. Respondent further agrees to follow all recommendations of his treating provider(s) and execute a release to allow communication between his clinical supervisor and the treatment provider(s). The clinical supervisor shall report to the Board the progress of the psychotherapy and compliance with this Order.

CONTINUING EDUCATION

25. During the period of probation, Respondent must successfully complete at least twenty (20) hours each year of Board-approved professional continuing education courses in areas to include, but not limited to, boundaries, ethics, confidentiality, and record keeping.

Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, the provider is to mail to the Board a certificate of completion.

TERMS AND CONDITIONS

26. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that he does not engage in any activities that are prohibited and that he practices in accordance with the generally accepted standards of practice.

27. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing psychotherapy, unless such supervision or consultation is monitored in accordance with this Order.

28. All expenses incurred or associated with the practice evaluation, clinical supervision, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

29. During the pendency of this Order, Respondent agrees that he will provide permission to and allow his clinical supervisor to provide records and information obtained in the normal course of clinical supervision to the Board if the clinical supervisor determines that Respondent is not practicing professional counseling in accordance with generally accepted standards of practice or has a condition that renders him unable to treat clients with skill and safety or that may endanger the health or safety of persons under his care. As part of this Order, Respondent explicitly waives his right to maintain confidentiality of records or information provided to the clinical supervisor in the normal course of clinical supervision or treatment if the clinical supervisor determines that he is not practicing professional counseling in accordance with generally accepted standards of practice or has a condition that renders him unable to treat clients with skill and safety or that may endanger the health or safety of persons under his care.

30. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

31. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

32. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

33. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-222, C.R.S., and shall have the same force

and effect as an Order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

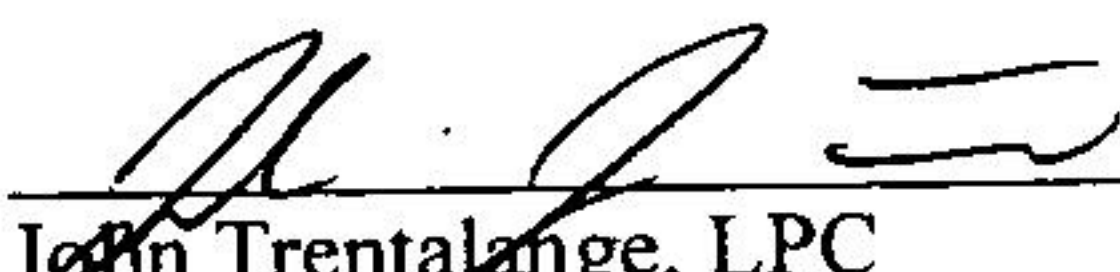
34. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

35. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

36. This Order shall become effective when accepted and signed on behalf of the Board.

37. This Order shall be a public record in the custody of the Board.

RESPONDENT

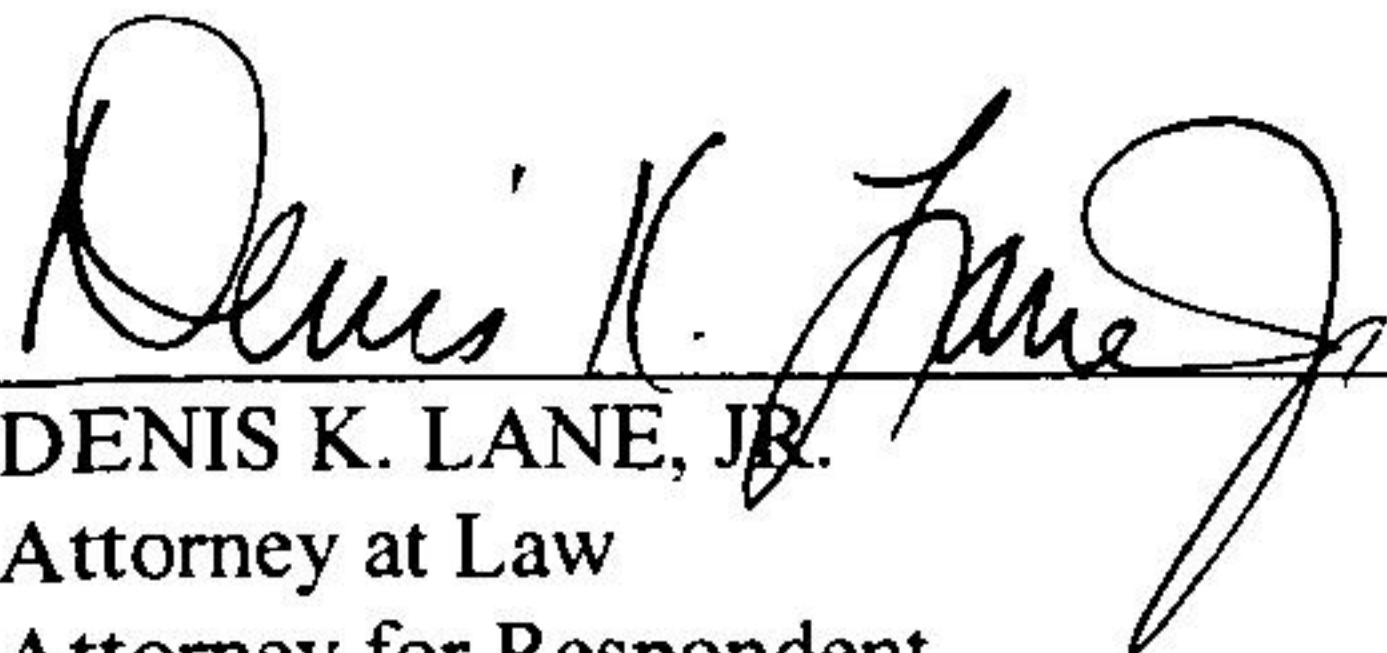

John Trentalange, LPC
License No. 2626

**COLORADO STATE BOARD OF
PROFESSIONAL COUNSELOR
EXAMINERS**


Gayle Fidler, Program Director (ACTING)
D.F. DECHAUD
Effective Date: This 22nd day of

January, 2008

APPROVED AS TO FORM:



DENIS K. LANE, JR.

Attorney at Law

Attorney for Respondent

P.O. Box 6476

Colorado Springs, CO 80934-6476

Telephone: (719) 636-1017

FAX: (719) 635-4571

E-mail: dklaneatty@qwest.net

JOHN W. SUTHERS

Attorney General



DIANA E. BLACK, #20099*

Deputy Attorney General

Business and Licensing Section

Attorneys for State Board of Licensed

Professional Counselor Examiners

1525 Sherman Street, 7th Floor

Denver, CO 80203

Telephone: (303) 866- 5542

FAX: (303) 866-5395

E-mail: diana.black@state.co.us

*Counsel of Record